

Proposed Substitute

Approved as to
form only:

D. White

Date: 5/27/2014

**AMENDMENT NUMBER ONE
TO THE COOPERATIVE AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

State Project ARSCT 0.00 B149A02
Epoxy Striping-Variou Locations in the
City of Cheyenne
Laramie County

1. **Parties.** This Amendment is made and entered into by and between the Wyoming Department of Transportation (WYDOT), whose address is 5300 Bishop Boulevard, Cheyenne, Wyoming 82009; and the City of Cheyenne (City), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of this Amendment.** This Amendment shall constitute the First Amendment to the Original Agreement between WYDOT and the City which was duly executed on March 12, 2014. The purpose of this Amendment is to replace the Exhibit "B" dated September 30, 2013 with the updated costs from the May 8, 2014 Bid Opening's low bid submitted by Streamline Markings.

The Original Agreement provided for the performing epoxy striping of various roads in the City of Cheyenne, for the total Agreement amount of \$57,807.

Amendment Number One provides for amending the costs on the Original Agreement to the low bid costs of the May 8, 2014 letting submitted by Streamline Markings, increasing the Agreement amount by \$22,175 for a total project cost of \$79,982.
3. **Term of Amendment.** This Amendment shall commence upon the date the last required signature is affixed hereto and shall remain in full force and effect through the term of the Agreement, unless terminated at an earlier date pursuant to the provisions of the Agreement, or pursuant to federal or state statute or rule or regulation.
4. **Special Provisions.** Same Terms and Conditions. With the exception of items explicitly delineated in this Amendment, all terms and conditions of the Original Agreement between WYDOT and the City, including but not limited to sovereign immunity, shall remain unchanged and in full force and effect.
5. **General Provisions.** Entirety of Agreement. This Amendment, consisting of two pages, Exhibit "B", consisting of one page; and the Original Agreement consisting of five pages, and Exhibit "A" and Exhibit "B", consisting of one page each; represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

6. **Signatures.** In witness thereof, the parties to this Amendment through their duly authorized representatives have executed this Amendment, known as Amendment Number One to the Original Agreement between WYDOT and the City, on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment as set forth herein.

The effective date of this Amendment is the date of the signature last affixed to this page.

Attest:

City of Cheyenne, Wyoming:

Carol Intlekofer, City Clerk

Richard L. Kaysen, Mayor

(SEAL)

Date

Attest:

Wyoming Department of Transportation:

Sandra J. Scott, Secretary
Transportation Commission of Wyoming

Del McOmie, P.E., Chief Engineer

(SEAL)

Date

Approved as to form:

By: _____
Douglas J. Moench
Senior Assistant Attorney General
State of Wyoming

Date amendment prepared: 5-22-14

EXHIBIT "B"

Federal Project HSIP-SEP-B149028 combined with ARSCT-B149A02

Districts 1, 3 & 4 Epoxy Striping
AL, CB, CL, LA, SW, TE & UI Counties

May 8, 2014

Costs were assembled by the State using bid tabulations calculated from the apparent low bid by Streamline Markings, on May 8, 2014.

ARSCT-B149A02

Estimated Construction Costs	= \$	61,584.00	
10% Preliminary Engineering		6,158.00	
10% Construction Engineering		<u>6,158.00</u>	
Total Direct Costs	= \$	73,900.00	[1]
Indirect Cost Allocation Plan (ICAP) (73,900)(0.0823)		<u>6,082.00</u>	[2]
Total ARSCT Project Costs [1]+[2]	=	<u>\$ 79,982.00</u>	

Written concurrence is required by Tuesday, May 13, 2014 two days prior to the Commission meeting on awarding the projects. A faxed copy of the concurrence letter will suffice WITH THE ORIGINAL TO FOLLOW.